

Tentative Rulings for Department 501

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Tentative Ruling

Re: **NICBYTE, LLC v. Community West Bank**
Superior Court Case No. 24CECG01486

Hearing Date: September 10, 2026 (Dept. 501)

Motion: By Defendant Community West Bank to Compel Deposition

Tentative Ruling:

To deny. (Code Civ. Proc., § 2025.480.)

Explanation:

Parties are able to seek discovery of any relevant, not privileged matter which is admissible in evidence or reasonably calculated to lead to discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) Defendants are “entitled to discover by appropriate interrogatories the facts, if any, presently known to the plaintiff upon which he bases the allegations of his complaint and upon which he presently relies to prove his case.” (*Sheets v. Superior Court In and For Los Angeles County* (1967) 257 Cal.App.2d 1, 8-9.)

Code of Civil Procedure section 2025.230 articulates that a deposition notice may describe “the matters on which examination is requested” such that a person most knowledgeable on those matters from a corporation may be provided for the deposition. This puts the onus on the corporation to identify and provide the appropriate deponent. (*LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 948.) Further, where the person “designated lacks personal knowledge of all the information sought, he or she is to find out from those who do!” (*Maldonado v. Superior Court* (2002) 94 Cal.App.4th 1390, 1369, exclamation in original.)

Code of Civil Procedure section 2025.480, subdivision (a) provides a mechanism for compelling answers or production following a deposition of a person most knowledgeable (“PMK”). Motions regarding discovery are to be heard on or before the 15th day before the initial date set for trial. (Code Civ. Proc., § 2024.020, subd. (a).) Continuance of the trial does not necessarily reopen discovery. (*Id.* at subd. (b).) Parties may seek to reopen discovery after a trial date has been moved. (Code Civ. Proc., § 2024.050, subd. (a).) Here, trial was initially set for August 17, 2026 and this motion was scheduled to occur on August 11, 2026, past the statutory deadline. Trial has since been continued to November 2, 2026. Here, the parties have been proceeding as if motion cut off dates have been continued.

Before filing a motion to compel further answers, the moving party must make a reasonable, good faith attempt to resolve the matter. (Code Civ. Proc., § 2016.040.) Here, meet and confer efforts began with correspondence on May 6, 2026. (*Liu Decl.*, ¶ 9.) On May 13, 2026, plaintiffs agreed to extend any motion to compel deadlines. (*Id.* at ¶ 11.) The parties met and conferred in person on June 2, 2026 and by telephone on June 5,

2026. (Fogarty Decl., ¶ 7.) Ultimately, defendant served and filed a request for a pretrial discovery conference. (Liu Decl., ¶ 14.) Following an opposition, the court ordered that defendant could file a motion. (Order, July 7, 2026; Liu Decl., ¶¶ 15, 16.) Plaintiff challenges that defendant did not raise any concerns about Request for Production Number 1 of the deposition notice. This request seeks documents and communications forming the basis for each cause of action alleged in the First Amended Complaint. (Liu Decl., Exh. B.) In the initial letter to plaintiffs' counsel, defendant did note that if certain types of damages were sought, the production of documents did not reflect these. (Liu Decl., Exh. I.)

Plaintiffs assert that defendant delayed in raising any issues to plaintiffs regarding the deposition. Plaintiffs cite to no legal authority here. Further, plaintiffs agreed to an extension of time to file a motion to compel.

Plaintiffs assert that the questions at issue are improper contention-style questions. The court in *Rifkind v. Superior Court* (1994) 22 Cal.App.4th 1255, 1259 held that contention questions are inappropriate in the context of a deposition. Contention-style questions are those which seek "a party deponent to state all facts, list all witnesses and identify all documents that support or pertain to a particular contention in that party's pleadings." (*Ibid.*) The court noted while these are inappropriate in the context of a deposition, they are appropriate in interrogatories. (*Ibid.*) Plaintiffs assert that the PMK testified regarding categories of damages, approximate amounts, and facts supporting these. The PMK identified six categories of damages. (Fogarty Decl., ¶¶ 16-17, Exhs. E-F.) Further, interrogatory responses were served addressing damages. (Fogarty Decl., Exh. D.)

Plaintiffs claim that the *Rifkind* case controls here and defendant claims *Maldonado* controls. However, *Rifkind* and *Maldonado* are to be read together. It is not one or the other. *Maldonado* insists the right person be chosen as the PMK; *Rifkind* insists the right questions be asked in the context of a deposition.

Topics One and Eighteen

Topic One seeks "All facts, documents, and communications that form the basis for each cause of action alleged in the FAC, including promissory fraud, fraud/intentional misrepresentation, negligent misrepresentation, breach of contract, negligence, and intentional interference with contractual relations." Topic Eighteen seeks, "All facts, documents, and communications concerning plaintiffs' alleged damages, including the nature, amount, and method of calculation of each category of damages claimed." Plaintiffs object to these as seeking contention discovery in a deposition. Here, these topics do seek contention discovery in a deposition context. Thus, to the extent any specific deposition questions similarly sought such, those questions would be inappropriate. To the extent that defendant takes issue with the PMK provided by plaintiffs, this is not the motion before the court. To the extent defendant asserts that the PMK was unprepared, this is not consistent with the excerpts provided. In these, the PMK appears knowledgeable, refers to details of factors involved in answering the question, and answers the questions, often in detail and with qualifying information provided.

Production

Deposition Testimony

Occasionally the PMK would answer the question in part and note that providing more information would invade a privilege. This was primarily in the context of questions asking how damages were calculated. An attorney's work product is privileged unless the court determines "denial of discovery will unfairly prejudice the party seeking discovery." (Code Civ. Proc., § 2018.030, subd. (b).) Defendant's issue with these responses appears to be a dissatisfaction with the answer provided. While defendant argues that the information used to make the calculations should have been provided, this is not shown by the portions of the deposition defendant provided. Rather, the questions appear to seek information about the methods used for calculating damages, which the PMK asserted were done with the assistance of counsel. Where they do seek information about documents used, the PMK answered that the documents he recalled were subject to a privilege. (Separate Statement, pp. 30-31.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 09/09/26
(Judge's initials) (Date)